

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Daniel Giansante	Team: Squad #14	CCRB Case #: 201505921	☐ Force	☒ Discourt.	☐ U.S.
			☐ Abuse	☒ O.L.	☐ Injury
Incident Date(s) Sunday, 06/28/2015 9:15 AM	Location of Incident: Hamilton Place and West 136th Street	Precinct: 30	18 Mo. SOL 12/28/2016	EO SOL 12/28/2016	
Date/Time CV Reported Sat, 07/18/2015 7:49 AM	CV Reported At: CCRB	How CV Reported: On-line website	Date/Time Received at CCRB Sat, 07/18/2015 7:49 AM		

Complainant/Victim	Type	Home Address

Witness(es)	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. POF Christine Winter	16237	953573	030 PCT
2. POF Shakina Fludd	18300	944262	030 PCT

Officer(s)	Allegation	Investigator Recommendation
A.POF Shakina Fludd	Off. Language: PO Shakina Fludd made remarks to § 87(2)(b) based upon race.	
B.POF Christine Winter	Discourtesy: PO Christine Winter spoke rudely to § 87(2)(b)	
§ 87(2)(g), § 87(4-b)		

Case Summary

On June 28, 2015, at approximately 9:15 a.m., PO Christine Winter and PO Shakina Fludd of the 30th Precinct stopped § 87(2)(b)'s vehicle after he drove the wrong way on Hamilton Place near West 136th Street in Manhattan. PO Fludd spoke first to § 87(2)(b) and obtained his license and registration. During this conversation, PO Fludd allegedly said, "You white boys think you can do whatever you want when you're up here in northern Manhattan" (**Allegation A**). PO Winter issued § 87(2)(b) a summons for § 87(2)(b) (BR01). When she presented the summons to § 87(2)(b) PO Winter allegedly said, "You drive like a fucking asshole" (**Allegation B**).

§ 87(2)(g), § 87(4-b)

Mediation, Civil and Criminal Histories

- This complaint was unsuitable for mediation § 87(2)(g)
- On September 11, 2015, the undersigned requested copy of any Notice of Claim filed with the NYC Comptroller's office regarding the incident (BR02). The response will be added to the case file upon receipt.
- During his CCRB interview, § 87(2)(b) #### stated he was due to appear in court on § 87(2)(b), to dispute the summons he received.
- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]
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Civilian and Officer CCRB Histories

- This is the first CCRB complaint filed by § 87(2)(b) (BR04).
- PO Winter has been a member of the NYPD for three years and has had no previous CCRB allegations (see officer history).
- PO Fludd has been a member of the NYPD for eight years and has had one previous CCRB allegation, for which mediation was attempted (see officer history).

Findings and Recommendations

- **Allegation A—Offensive Language: PO Shakina Fludd made remarks to § 87(2)(b) based upon race.**

When he filed the complaint on the CCRB website, § 87(2)(b) alleged that PO Fludd said, "You white boys think you can do whatever you want when you're uptown." In his telephone statement, he alleged that she said, "You white boys think you can drive however you want when you're uptown" (BR05). At his in-person CCRB interview, he alleged that PO Fludd said, "You white boys think you can do whatever you want when you're up here in northern Manhattan" (BR06). § 87(2)(b) § 87(2)(b)'s coworker and front passenger at the time of the incident, recounted that he heard some of the officers' conversation with § 87(2)(b) (BR07). However, § 87(2)(b) insisted that he was texting his wife during the incident, was not paying attention, did not hear everything the officers said, and did not "know the whole story." He denied hearing either officer use profanity or make any remarks regarding § 87(2)(b)'s race.

PO Fludd recounted that she identified herself when she first approached § 87(2)(b)'s window and attempted to explain why she had stopped him (BR08). § 87(2)(b) repeatedly interrupted her to say that he was working for § 87(2)(b) and that he had a relative who was a member of the NYPD. PO

Fludd denied that she made any remarks to § 87(2)(b) regarding his race, denied using the phrase “white boys,” and specifically denied making the statement alleged by § 87(2)(b) PO Winter recounted that she stood at the front passenger window while PO Fludd spoke to § 87(2)(b) and she denied hearing PO Fludd make the alleged statement or make any remarks regarding § 87(2)(b) s race (BR09).

§ 87(2)(g)

• **Allegation B—Discourtesy: PO Christine Winter spoke rudely to § 87(2)(b)**

In his online complaint and in his telephone statement, § 87(2)(b) alleged that PO Winter said, “You drive like an asshole.” During his in-person interview, he alleged that PO Winter said, “You drive like a fucking asshole.” When questioned on the discrepancy, § 87(2)(b) said that he thought that “asshole” was the relevant part of her statement. As previously discussed, § 87(2)(b) denied hearing any officer use profanity during the incident but also said he was not paying attention and did not hear everything the officers said.

PO Winter denied making the alleged statement. When asked if she used any profanity with § 87(2)(b) she said, “I don’t believe so.” PO Fludd denied hearing PO Winter make the alleged statement or use any profanity during the incident.

§ 87(2)(g)

• § 87(2)(g), § 87(4-b)

Squad: 14

Investigator: _____ Daniel Giansante _____
Signature Print Date

Pod Leader: _____
Title/Signature Print Date

Attorney: _____
Title/Signature Print Date